

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Henry Cordes	Team: Team # 3	CCRB Case #: 200705189	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/31/2007 11:20 PM	Location of Incident: § 87(2)(b)	Precinct: 75	18 Mo. SOL 9/30/2008	EO SOL 9/30/2008	
Date/Time CV Reported Sat, 04/14/2007 1:31 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 04/14/2007 1:31 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Ronald Reynolds	23271	937368	075 PCT
2. POM Diery Louis	29819	940395	075 PCT
3. Officers			075 PCT
4. An officer			

Officer(s)	Allegation	Investigator Recommendation
A.POM Ronald Reynolds	Abuse: PO Ronald Reynolds stopped § 87(2)(b)	§ 87(2)(b)
B.POM Diery Louis	Abuse: PO Diery Louis stopped § 87(2)(b)	§ 87(2)(b)
C.POM Ronald Reynolds	Abuse: PO Ronald Reynolds damaged § 87(2)(b)'s door.	§ 87(2)(b)
D. Officers	Discourtesy: Officers spoke obscenely to § 87(2)(b)	§ 87(2)(b)
E. An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	§ 87(2)(b)

Synopsis

The CCRB received this complaint on April 14th, 2007, via the call processing system, from § 87(2)(b). At approximately 11:00pm on March 31st, 2007, PO Ronald Reynolds and PO Diery Louis of the 75th Precinct received a description from an anonymous female of an individual who was possibly attempting to burglarize homes on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. PO Reynolds and PO Louis went to this location and observed § 87(2)(b) who matched the description provided by the female. The officers approached § 87(2)(b) at which point he ran inside § 87(2)(b). § 87(2)(b) was staying in the ground floor apartment of § 87(2)(b) with his girlfriend, § 87(2)(b). § 87(2)(b) was renting the apartment from § 87(2)(b) who owns the building, at the time of the incident. The officers chased § 87(2)(b) and PO Reynolds stuck his foot between the door and doorframe in an attempt to prevent § 87(2)(b) from closing the door (allegation A and B). § 87(2)(b) alleged that PO Reynolds kicked her front door (allegation C). After a couple minutes, § 87(2)(b) and § 87(2)(b) came out of § 87(2)(b) and spoke to the officers. § 87(2)(b) alleged that the officers cursed at § 87(2)(b) calling him a “pussy” and a “long-haired bitch” (allegation D). § 87(2)(b) also alleged that an officer challenged § 87(2)(b) to fight him (allegation E). The officers then left the location.

§ 87(2)(g)

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Summary of Complaint

§ 87(2)(b) is a black male who was § 87(2)(b) on the date of the incident. He provided a statement to the CCRB on April 26th, 2007 (Enc. 3c-h). He did not witness the incident, but heard about it second-hand from his wife, § 87(2)(b).

At approximately 11:40pm on March 31st, 2007, § 87(2)(b) came home and observed damage to § 87(2)(b)'s apartment door. § 87(2)(b) showed the investigator photographs of his door with a crack running up one end (Enc. 3f-g). § 87(2)(b) stated that the lock above the door handle was also broken, such that the door could no longer be securely locked. § 87(2)(b) and § 87(2)(b) went to the 75th Precinct at 11:50pm and spoke to a desk sergeant. At the station house, § 87(2)(b) pointed out the two officers who had attempted to stop § 87(2)(b) to § 87(2)(b). PO #1 was a bald white male and PO #2 was a black male, whom § 87(2)(b) identified as “Jerry.” PO #1 was identified through investigation as PO Reynolds and PO #2 was identified through investigation as PO Louis. The desk sergeant told § 87(2)(b) to take officers to his home to show them the damage. Another sergeant, PO Louis, and PO #3 went to § 87(2)(b)'s home and observed the damage to his door. The sergeant was a 5’8” white male and PO #3 was a white male. § 87(2)(b) and the officers then returned to the station house and the desk sergeant said that he would complete a “city involved” accident report. § 87(2)(b) has been back to the station house several times and called the Comptroller’s Office, however nothing has been done about his door and it has not been repaired and he has not been able to locate a copy of the accident report.

Results of Investigation

Civilian Statements

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black female. She provided a telephone statement to the CCRB on May 24th, 2007 (Enc. 4a), and an official statement on June 8th, 2007 (Enc. 4b-d). § 87(2)(g)

At approximately 11:20pm on March 31st, 2007, two officers attempted to stop § 87(2)(b) outside § 87(2)(b)'s apartment. § 87(2)(b) refused to stop and entered § 87(2)(b)'s apartment. § 87(2)(b) did not witness this but heard about it from § 87(2)(b). § 87(2)(b) heard § 87(2)(b) enter and then heard a bang on her door and went outside. § 87(2)(b) assumed from the sound that someone had kicked her door. The front door was cracked along one side. § 87(2)(b) came outside and began arguing with PO #1. PO #1 was a 5'10" black male in uniform, identified through investigation as PO Louis. PO Louis and § 87(2)(b) were cursing at each other, but § 87(2)(b) could not remember what they were saying. PO #2 was a bald white male, identified through investigation as PO Reynolds. § 87(2)(b) asked PO Reynolds why the officers had kicked the door. PO Reynolds said that if § 87(2)(b) had stopped, the officers would not have kicked the door. PO Reynolds called § 87(2)(b) a "pussy" and a "long-haired bitch." § 87(2)(b) told PO Reynolds to "bring his wife."

More officers responded to the location. PO #3 took his belt off and gave it to PO #4, telling him that § 87(2)(b) should come outside so that he could fight him. PO #3 was a large white male and PO #4 was a short Asian male. § 87(2)(b) came outside and spoke to the officers. The officers told § 87(2)(b) that § 87(2)(b) fit the description of a robbery suspect. The officers did not take any information from § 87(2)(b) and left the location. PO Louis and two of his supervisors later came to the apartment to inspect the damage to the door.

§ 87(2)(b)

§ 87(2)(b) provided a telephone statement to the CCRB on May 21st, 2007 (Enc. 5a). § 87(2)(g)

§ 87(2)(b) did not see officers kick the apartment door. When she came outside, officers were standing on the sidewalk outside her front yard. § 87(2)(b) was yelling obscenities towards the officers.

Civilian Witnesses Not Interviewed

Two 'please call' letters were sent to § 87(2)(b) which his girlfriend, § 87(2)(b) confirmed that he received. It was not possible to contact § 87(2)(b) via telephone because, according to § 87(2)(b) he has no telephone. Three messages were left for § 87(2)(b) with § 87(2)(b). As of August 21st, 2007, § 87(2)(b) has not contacted the CCRB and therefore he has not been interviewed.

Identification of Officers Interviewed

§ 87(2)(b) described the officers involved in the incident as a white male and a black male, named "Jerry." The 75th Precinct roll call indicated that PO Diery Louis, a black male, was

working with PO Ronald Reynolds, a white male, at the time of the incident. Both officers confirmed their involvement in the incident during their CCRB interviews.

PO Ronald Reynolds

PO Reynolds is a § 87(2)(b) white male. He provided a statement on August 2nd, 2007 (Enc. 6a-d).

PO Reynolds worked from 5:30pm on March 31st, 2007, until 2:05am on April 1st, 2007. His assignment was tracer zone 1. He worked with PO Louis and was in uniform. He was assigned to RMP 1820. His memo book indicates that a female reported that a black male with long dreadlocks, wearing a baseball cap and jeans, was possibly committing a burglary. There was a foot pursuit of a male matching the description, who fled into § 87(2)(b) (Enc. 6a-b).

At approximately 11:20pm on March 31st, 2007, a woman flagged down PO Reynolds and PO Louis and stated that a black male with long dreadlocks wearing a baseball cap and jeans was possibly committing a burglary on the corner of § 87(2)(b) and § 87(2)(b). PO Reynolds went to the location and observed a male matching the description, identified through investigation as § 87(2)(b). PO Reynolds and PO Louis got out of their vehicle and PO Reynolds said, "Excuse me," at which point § 87(2)(b) immediately grabbed the front of his waist, as if hiding something, and ran inside § 87(2)(b). The officers ran after § 87(2)(b) and, while the front door was open, PO Reynolds put his foot in between the door and the frame in an attempt to prevent § 87(2)(b) from closing the door. § 87(2)(b) slammed the door, forcing PO Reynolds' foot out. PO Reynolds did not kick the door and did not have any further contact with it. PO Reynolds did not observe any damage to the door.

The officers decided to leave and got back in their RMP, at which point § 87(2)(b) came back outside and yelled that he was going to "fuck" PO Reynolds's wife and kill his children. PO Louis got out of the RMP and attempted to grab § 87(2)(b) at which point he ran back inside § 87(2)(b). PO Reynolds did not speak to § 87(2)(b) and did not recall if PO Louis spoke to him. Neither PO Louis nor PO Reynolds cursed at § 87(2)(b) or called him a "pussy" or a "long-haired bitch." Another patrol unit drove by and asked the officers if they needed any assistance. PO Reynolds told the officers that he did not need any assistance and the other officers left without getting out of their vehicle. The officers did not tell § 87(2)(b) to fight them. There were no other civilians at the location. PO Reynolds and PO Louis then decided to leave the location because they did not want to deal with § 87(2)(b) any further. Some time afterwards, the officers were called back to the station house to explain to their sergeant what had happened because § 87(2)(b) had come to the station house to make a complaint about damage to his door. Another sergeant and PO Louis went to § 87(2)(b) to look at the front door, which § 87(2)(b) claimed had been damaged during the incident. The sergeant was unable to determine whether the damage was pre-existing, but PO Reynolds completed a "city involved" accident report anyway.

PO Diery Louis

PO Louis is a § 87(2)(b) black male. He provided a statement on August 1st, 2007 (Enc. 7a-d).

PO Louis worked from 3:30pm on March 31st, 2007, until 2:05am on April 1st, 2007. His assignment was tracer. He worked with PO Reynolds and was in uniform. He was assigned to RMP 1820. His memo book indicates that he had a description of a black male wearing blue jeans

and a striped t-shirt. § 87(2)(g)

After § 87(2)(b) had run back inside § 87(2)(b) PO Louis explained the situation to § 87(2)(b) who stated that she owned the building and that § 87(2)(b) was renting from her. The owner of the building, § 87(2)(b) came to the station house later and claimed that there was damage to his door as a result of the incident. PO Louis went back to the location to look at the door, but did not observe any damage to the door; however, the striking plate on the door frame was bent slightly. PO Reynolds completed a “city involved” accident report anyway.

Officers Not Interviewed

§ 87(2)(b) alleged that an additional unknown officer threatened to fight § 87(2)(b) § 87(2)(g)

Police Documents

The 75th Precinct **roll call** (Enc. 8a) indicates that PO Reynolds and PO Louis were on duty at the time of the incident.

No **city involved accident report** could be found on file at the 75th Precinct (Enc. 11b).

PO Reynolds’ CCRB History

PO Reynolds has no substantiated allegations on his record in his two-year tenure with the NYPD (Enc. 1a).

PO Louis’ CCRB History

PO Louis has no substantiated allegations on his record in his one-year tenure with the NYPD (Enc. 1b).

§ 87(2)(b) CCRB History

§ 87(2)(b) has filed no previous CCRB complaints (Enc. 2a).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Identification of Subject Officers

PO Reynolds and PO Louis stated that they attempted to stop § 87(2)(b) § 87(2)(g) PO Reynolds stated that he attempted to stop § 87(2)(b) from closing his front door by putting his foot between the door and the frame.

§ 87(2)(g)

Undisputed Facts

It is not disputed that PO Reynolds and PO Louis attempted to stop § 87(2)(b) and that PO Reynolds' foot made contact with § 87(2)(b)'s front door during the ensuing pursuit. It is also not disputed that § 87(2)(b) cursed at the officers

Disputed Facts

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

Credibility

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A: PO Ronald Reynolds stopped § 87(2)(b)

Allegation B: PO Diery Louis stopped § 87(2)(b)

PO Reynolds and PO Louis stated that they attempted to stop § 87(2)(b) because he matched the description of a possible burglary suspect. § 87(2)(g)

Allegation C: PO Ronald Reynolds damaged § 87(2)(b)'s door.

§ 87(2)(b) stated that he was told that an officer kicked his door, causing damage to it. PO Reynolds stated that § 87(2)(b) slammed the door on his foot while he was chasing him. PO Reynolds denied kicking the door. None of the civilians who were interviewed saw PO Reynolds kick the door § 87(2)(g)

Allegation D: Officers spoke obscenely to § 87(2)(b)

Allegation E: An officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that an officer, identified as PO Louis, cursed at § 87(2)(b) and that an officer, identified as PO Reynolds, called § 87(2)(b) a "pussy" and a "long-haired bitch." Both PO Reynolds and PO Louis denied cursing at § 87(2)(b). § 87(2)(b) also alleged that an officer told § 87(2)(b) to fight him. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: